



Notification Waiver Determination

Imagine Education – Bumper Bears Early Learning Centre in Kippa-Ring, QLD

Acquisition	Imagine Education Early Learning Centres No. 40 Pty Ltd (Imagine Education) and Children First Property Pty Ltd as trustee for the Children First Property Trust (Children First), both of which are part of the Imagine Education Group, applied for a notification waiver in respect of: • Imagine Education's proposed acquisition of the childcare centre business known as Bumper Bears Early Learning Centre located in Kippa-Ring, Queensland (Bumper Bears) and a lease of the land on which Bumper Bears operates • Children First's proposed acquisition of the land on which Bumper Bears operates as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	4 September 2026

Parties to the Acquisition	The Imagine Education Group currently operates 63 childcare centres in Queensland, New South Wales, Victoria, South Australia and Tasmania under the Imagine Childcare, Children First, Grow Early Education and Learning Ladder brands. Children First currently owns the land on which 6 Imagine Education Group centres operate. The target, Bumper Bears, operates a single childcare centre (the centre proposed to be acquired), which is located at 401 Elizabeth Avenue, Kippa-Ring, Queensland 4021. The Imagine Education Group and Bumper Bears both provide centre-based childcare and early childhood education services (including long day care) for children aged up to 6 years of age in Queensland.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given:

	a. there is limited geographic overlap between Imagine Education and Bumper Bears in the supply of centre-based childcare and early childhood education services in Kippa-Ring and the surrounding areas b. there are alternative suppliers of centre-based childcare and early childhood education services in Kippa-Ring and the surrounding areas. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act